

(c) Disabled men, or men who have been medically rejected after offering themselves for enlistment, if on further medical examination after the fifth day of April nineteen hundred and seventeen in accordance with the regulations of the Army Council, or as respects an examination after the date on which the Ministry of National Service Order, 1917, came into force in accordance with the regulations of the Director-General of National Service, they have been certified to be totally and permanently unfit for any form of military service.

In this paragraph the expression "disabled men" means men (including officers) who have left or been discharged from the naval, military or air forces in consequence of disablement or ill-health.

5. Men in holy orders or regular ministers of any religious denomination.

Section 8 (3).

SECOND SCHEDULE.

ENACTMENTS REPEALED.

Session and Chapter.	Short Title.	Extent of Repeal.
5 & 6 Geo. 5. c. 104.	Military Service Act, 1916.	Subsection (1) of section one; subsections (2) and (5) of section three; and the First Schedule.
6 & 7 Geo. 5. c. 15.	Military Service Act, 1916 (Session 2).	Section one; the proviso to section two; and section eight.
7 Geo. 5. c. 12	Military Service (Review of Exceptions) Act, 1917.	The whole Act.
7 & 8 Geo. 5. c. 26.	Military Service (Conventions with Allied States) Act, 1917.	Paragraph (d) of subsection (1) of section two.

CHAPTER 6.

An Act to provide, during Twelve Months, for the Discipline and Regulation of the Army.

[30th April 1918.]

WHEREAS the raising or keeping of a standing army within the United Kingdom of Great Britain and Ireland in time of peace, unless it be with the consent of Parliament, is against law :

And whereas it is adjudged necessary by His Majesty and this present Parliament that a body of forces should be continued for the safety of the United Kingdom and the defence of the possessions of His Majesty's Crown, and that the whole number of such forces should consist of five million, including those to be employed at the depôts in the United Kingdom of Great Britain and Ireland for the training of recruits for service at home and abroad, but exclusive of the numbers actually serving within His Majesty's Indian possessions :

And whereas it is also judged necessary for the safety of the United Kingdom, and the defence of the possessions of this realm, that a body of Royal Marine forces should be employed in His Majesty's fleet and naval service, under the direction of the Lord High Admiral of the United Kingdom, or the Commissioners for executing the office of Lord High Admiral aforesaid :

And whereas the said marine forces may frequently be quartered or be on shore, or sent to do duty or be on board transport ships or vessels, merchant ships or vessels, or other ships or vessels, or they may be under other circumstances in which they will not be subject to the laws relating to the government of His Majesty's forces by sea :

And whereas no man can be forejudged of life or limb, or subjected in time of peace to any kind of punishment within this realm, by martial law, or in any other manner than by the judgment of his peers and according to the known and established laws of this realm ; yet, nevertheless, it being requisite, for the retaining all the before-mentioned forces, and other persons subject to military law, in their duty, that an exact discipline be observed, and that persons belonging to the said forces who mutiny or stir up sedition, or desert His Majesty's service, or are guilty of crimes and offences to the prejudice of good order and military discipline, be brought to a more exemplary and speedy punishment than the usual forms of the law will allow :

And whereas the Army Act will expire in the year one thousand nine hundred and eighteen on the following days :— 44 & 45 Vict.
c. 58.

- (a) In the United Kingdom, the Channel Islands, and the Isle of Man, on the thirtieth day of April ; and
- (b) Elsewhere, whether within or without His Majesty's dominions, on the thirty-first day of July :

Be it therefore enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1. This Act may be cited as the Army (Annual) Act, 1918. Short title.

Army Act to
be in force for
specified times.

2.—(1) The Army Act shall be and remain in force during the periods hereinafter mentioned, and no longer, unless otherwise provided by Parliament (that is to say):—

- (a) Within the United Kingdom, the Channel Islands, and the Isle of Man, from the thirtieth day of April one thousand nine hundred and eighteen to the thirtieth day of April one thousand nine hundred and nineteen, both inclusive; and
- (b) Elsewhere, whether within or without His Majesty's dominions, from the thirty-first day of July one thousand nine hundred and eighteen to the thirty-first day of July one thousand nine hundred and nineteen, both inclusive.

(2) The Army Act, while in force, shall apply to persons subject to military law, whether within or without His Majesty's dominions.

(3) A person subject to military law shall not be exempted from the provisions of the Army Act by reason only that the number of the forces for the time being in the service of His Majesty, exclusive of the marine forces, is either greater or less than the number hereinbefore mentioned.

Prices in re-
spect of billet-
ing.

3. There shall be paid to the keeper of a victualling house for the accommodation provided by him in pursuance of the Army Act the prices specified in the Schedule to this Act.

AMENDMENTS OF THE ARMY ACT.

Billeting of
enrolled
women.

4. During the continuance in force of an emergency Order by His Majesty under section one hundred and eight A of the Army Act women who are enrolled for employment by the Army Council shall be entitled to be billeted; and, accordingly, the following subsection shall be added at the end of that section:—

“(7) The provisions of this Act as to billeting shall, whilst any Order of His Majesty under this section is in force, apply to women who are enrolled for employment by the Army Council as they apply to soldiers; and for the purpose of those provisions as so applied officers of any troops with whom the women to be billeted are employed and the officer commanding those troops shall be deemed in relation to such women to be their officers and commanding officer; and if any such woman is guilty of an offence in relation to billeting mentioned in section thirty of this Act she shall be punishable on summary conviction in manner provided by subsection (2) of section one hundred and eleven of this Act.”

5. In subsection (5) of section twenty-four of the Army Act Amendment of s. 24 of Army Act. the words "or other animal" shall be inserted after the word "horse."

6. In subsection (1) of section fifty-two of the Army Act Amendment of s. 52 of Army Act. (which prescribes the oath to be administered to members of courts-martial) the following words shall be inserted after the words "and you do further swear that" where those words first occur:—

"except so far as may be permitted by instructions of the
"Army Council for the purpose of communicating the
"sentence to the accused,"

7.—(1) At the end of subsection (1) of section one hundred and thirty-three of the Army Act (which relates to military prisons and detention barracks) the following words shall be inserted:— Amendment of s. 133 of Army Act.

"and every building or part of a building set apart under
"the Air Force Act as an air-force prison or detention
"barrack, shall, unless the Secretary of State otherwise
"directs, be deemed to be a military prison or detention
"barrack within the meaning of this section."

(2) This section shall, notwithstanding anything in section fourteen of the Army (Annual) Act, 1904, come into operation both within the British Islands and elsewhere on the passing of this Act.

8. Section one hundred and forty of the Army Act (which relates to deductions from ordinary pay) shall be amended as follows:— Amendment of s. 140 of Army Act.

"In subsection (2) the following shall be substituted for the words from 'So, however, that' to the end of the subsection:—

"So, however, that—

"(a) no person shall be treated as absent, imprisoned or detained, for the purposes aforesaid, unless the absence, imprisonment or detention has lasted six hours or upwards, except where the absence prevented the absentee from fulfilling any military duty which was thereby thrown on some other person;

"(b) a period of absence, imprisonment or detention which commences before and ends after midnight may be reckoned as a day;

"(c) the number of days shall be reckoned as from the time when the absence, imprisonment, or detention commences; and

"(d) no period of less than twenty-four hours shall be reckoned as more than one day."

Amendment of
s. 142 of Army
Act.

9. Section one hundred and forty-two of the Army Act (which relates to false oaths and personation) shall be amended as follows :—

- (a) After the words “possession of the military authorities” where they occur in subsection (1) thereof there shall be inserted the words “or with respect to the grant “of any relief, benefit, or advantage in connection “with military service,” and after the same words where they occur in subsection (3) thereof there shall be inserted the words “or to any relief, benefit, “or advantage granted in connection with military “service”;
- (b) For the words “such payment” in subsection (1) thereof there shall be substituted the words “such payment, delivery or grant”;
- (c) For the words “a particular man in” in subsection (2) thereof there shall be substituted the words “a particular man in or who has been in.”

Amendment
of s. 145 of
Army Act.

10. Subsection (2) of section one hundred and forty-five of the Army Act (which relates to the liability of a soldier to maintain his wife and children) shall be amended as follows :—

The words from “succeeding” to the end of the subsection shall be omitted, and the following words shall be inserted instead thereof—

“where the soldier is a warrant officer (Class I.) not holding an honorary commission—in respect of a wife or children one shilling and sevenpence, and in respect of a bastard child one shilling and one penny,

“where the soldier is a warrant officer (Class II.) not holding an honorary commission, or a non-commissioned officer who is not below the rank of sergeant—in respect of a wife or children one shilling and one penny, and in respect of a bastard child eightpence ;

“in the case of any other soldier—in respect of a wife or children ninepence, and in respect of a bastard child sixpence.”

Amendment
of s. 156 of
Army Act.

11.—(1) Subsection (1) of section one hundred and fifty-six of the Army Act (which imposes a penalty on persons purchasing from soldiers regimental necessities, equipments, stores, &c.) shall be amended as follows :—

The words from “in the case of the first offence” down to “in the case of a second offence” (both inclusive), and the words “not less than five pounds, and” shall be omitted, and at the end of the subsection there shall be added the words “or to both such fine and imprisonment.”

(2) For subsection (9) of section one hundred and fifty-six of the Army Act, the following subsection shall be substituted:—

“(9) Every person who—

“(a) receives, detains or has in his possession any identity certificate, life certificate, or other certificate, or official document evidencing or issued in connection with the right of any person to a military pension, pay or reserve pay, or to any bounty, allowance, gratuity, relief, benefit or advantage granted in connection with military service, as a pledge or security for a debt, or with a view to obtain payment from the person entitled thereto of a debt due either to himself or to any other person; or

“(b) without lawful authority or excuse (the proof whereof shall lie on the accused) has in his possession any such certificate or document, or any certificate of discharge or any other official document issued in connection with the mobilisation or demobilisation of any of His Majesty's forces or any member thereof,

shall be liable on summary conviction to the like penalty as for an offence under subsection (1) of this section, and any such certificate or other document shall be deemed to be property within the meaning of this section.”

12.—(1) The following paragraph shall be added at the end of subsection (1) of section one hundred and sixty-three of the Army Act:— Amendment
of s. 163 (1) of
the Army Act.

“(k) Any document which would have been admissible in any proceeding under the Air Force Act by virtue of section one hundred and sixty-three of that Act shall in like manner and for the same purpose be admissible in evidence under this Act.”

(2) This section shall, notwithstanding anything in section fourteen of the Army (Annual) Act, 1904, come into operation both within the British Isles and elsewhere on the passing of this Act.

13. At the beginning of section one hundred and seventy-nine A of the Army Act the following subsection shall be inserted:— Amendment
of s. 179A of
the Army Act.

(1) The Army Council may direct from time to time that any officers or soldiers of the regular forces shall, under such conditions as may be prescribed by regulations made by the Army Council and the Air Council, be temporarily attached to the Air Force.

Section 3.

SCHEDULE.

Accommodation to be provided.	Maximum Price.
Lodging and attendance for soldier where meals furnished.	Sixpence per night.
Breakfast as specified in Part I. of the Second Schedule to the Army Act.	Sixpence each.
Dinner as so specified - - - - -	One shilling and twopence each.
Supper as so specified - - - - -	Fourpence each.
Where no meals furnished, lodging and attendance, and candles, vinegar, salt, and the use of fire, and the necessary utensils for dressing and eating his meat.	Sixpence per day.
Stable room and ten pounds of oats, twelve pounds of hay, and eight pounds of straw per day for each horse.	Two shillings and fourpence per day.
Stable room without forage - - - - -	Sixpence per day.
Lodging and attendance for officer - - - - -	Two shillings per night.

Note.—An officer shall pay for his food.

CHAPTER 7.

An Act to restrict the meaning of the expression landlord in subsection (3) of section one of the Increase of Rent and Mortgage Interest (War Restrictions) Act, 1915.

[2nd May 1918.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

Restriction of meaning of landlord in 5 & 6 Geo. 5, c. 97, s. 1 (3).

1. Subsection (3) of section one of the Increase of Rent and Mortgage Interest (War Restrictions) Act, 1915, shall have effect as if at the end thereof the following provision was inserted:—

“For the purposes of this subsection the expression “landlord” shall not include any person who since the thirtieth day of September nineteen hundred and seventeen has become landlord by the acquisition of the